

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
LARONNE CHANCE, A MINOR, BY HIS MOTHER
AND NATURAL GUARDIAN, JEANNETTE CHANCE,
ELIJAH TAYLOR-KINSALE, A MINOR, BY HIS
MOTHER AND NATURAL GUARDIAN, RACHEL
KINSALE,

Plaintiffs,

-against-

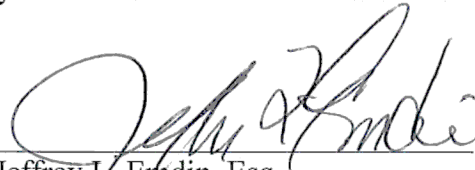
THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER BELLEVUE,
TAX ID # 945505, 81ST. PCT., AND POLICE OFFICERS
JOHN DOE #1-#6, IDENTITIES PRESENTLY UNKNOWN,

Defendants,
-----X

To the above named Defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiffs' Attorney with twenty (20) days after the service of this summons, exclusive of the day of service (30) days after the service is complete if the summons is not personally delivered to you within the State of New York; and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
June 21, 2019


Jeffrey L. Emdin, Esq.
EMDIN & RUSSELL, LLP.
Attorneys for the Plaintiffs
286 Madison Avenue Suite 2002
New York, New York 10017
(212) 683-3995

SUMMONS
INDEX NO.

Plaintiffs designate Kings
County as the Place of trial
The basis of venue is Kings
County is the place where the
cause of action arose.

Defendants' addresses:

City of New York
c/o Office of the Corporation Counsel
100 Church Street
New York, New York 10007

New York City Police Department
One Police Plaza
New York, N.Y. 10007

Police Officer Bellevue
Tax ID 945505
c/o 81st pct.
30 Ralph Avenue
Brooklyn, NY 11221

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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LARONNE CHANCE, A MINOR, BY HIS MOTHER
AND NATURAL GUARDIAN, JEANNETTE CHANCE,
ELIJAH TAYLOR-KINSALE, A MINOR, BY HIS
MOTHER AND NATURAL GUARDIAN, RACHEL
KINSALE,

VERIFIED COMPLAINT

Plaintiffs,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER BELLEVUE,
TAX ID # 945505, 81ST. PCT., AND POLICE OFFICERS
JOHN DOE #1-#6, IDENTITIES PRESENTLY UNKNOWN,

Defendants,
-----X

Plaintiffs, Laronne Chance and Elijah Taylor-Kinsale, by their attorneys, EMDIN &
RUSSELL, LLP, as and for a Verified Complaint allege as follows:

PARTIES

1. Upon information and belief, that at all times hereinafter mentioned, the defendant, the City of New York, hereinafter referred to as "CITY" was, and still is a municipal corporation duly organized and existing under, and by virtue of the laws of the State of New York.
2. Upon information and belief, at all times hereinafter mentioned the defendant, the City of New York, hereinafter certified to as "CITY", its agents, servants and/or employees operated, maintained and controlled the New York City Police Department, hereinafter referred to as "NYPD", including all the Police Officers therein.
3. Upon information and belief Police Officer Bellevue, hereinafter referred to as "Bellevue" at all times hereinafter mentioned, and on the 16th day of January, 2019 was

- employed as a Police Officer by the “CITY” and/or “NYPD”, and at all relevant times set forth below was assigned to the 81st. pct. and acted in the capacity as Police Officer and employee of the City of New York, and/or New York City Police Department.
4. Upon information and belief John Doe #1-#6, hereinafter referred to as ‘Does’ named herein in a fictitious capacity as their identity is presently unknown all times hereinafter mentioned, and on the 16th day of January, 2019 were employed as a Police Officer(s) by the “CITY” and/or “NYPD”, was assigned to the 81st pct. and at all relevant times set forth below acted in the capacity as Police Officer and employee of the City of New York, and/or New York City Police Department.
 5. Hereinafter, the police officers present at the location set forth below are collectively referred to as “the officers”.
 6. The incident set forth below occurred inside City Bus #46, at or near the intersection of Malcolm X Blvd. and Kosciuszka Street, Brooklyn, NY on January 16, 2019 at approximately 6:15 p.m., hereinafter referred to as “the location”.
 7. At all relevant times hereinafter mentioned, plaintiff, Laronne Chance, hereinafter referred to as “Laronne”, was a minor and a resident of Kings County, residing at 714 East 108th Street, Brooklyn, New York. This action is brought on his behalf by his mother and natural guardian, Jeanette Chance.
 8. At all relevant times hereinafter mentioned, plaintiff, Elijah Taylor-Kinsale, hereinafter referred to as “Elijah”, was a minor and a resident of Kings County, residing at 500 St John’s Place, Brooklyn, New York. This action is brought on his behalf by his mother and natural guardian, Rachel Kinsale.
 9. Laronne and Elijah shall hereinafter collectively be referred to as the “plaintiffs”.

10. The “plaintiffs” have each individually filed Notices of Claim advising of the nature of their claims. Both Elijah and Laronne have submitted to a 50 h hearing.
11. The defendants have not offered to settle the “plaintiffs’ claims.
12. This action is brought within a year and ninety days of the date when the causes of action arose.

STATEMENT OF FACTS

13. On January 16, 2019, at approximately 6:15 p.m., the “plaintiffs” were at the “location” boarding and then inside City Bus - B 46 with other students.
14. The defendants through their agents, servants, and/or employees, including the “police officers” entered the bus and aggressively approached Laronne, demanding to know if he was the one that said “suck my dick”.
15. Two police officers grabbed Laronne pulling him from his seat.
16. Numerous students on the bus, including Elijah were yelling that he (Laronne) didn’t do anything.
17. One police officer, pulled out a taser, activated it, pointed it, and threatened to use it.
18. Laronne was forcibly removed from the bus, placed in handcuffs and arrested.
19. Elijah was forcefully grabbed, pulled and removed from the bus.
20. Elijah was thrown against a wall and placed in handcuffs and arrested.
21. Elijah’s complaints that the handcuffs were too tight and causing severe pain were ignored by the defendants.
22. Laronne and Elijah were both searched and transported to the 81st precinct in handcuffs.
23. Elijah was placed in a holding cell inside the 81st precinct for approximately one hour.

24. Laronne was handcuffed to a bench inside the 81st precinct for approximately one hour.
25. Both Laronne and Elijah were issued summonses by "Bellevue" for disorderly conduct (penal law 240.20 (1)).
26. The plaintiffs were not engaged in disorderly conduct and were innocent of any crime.
27. Laronne did not consent to his detention/imprisonment or arrest.
28. Elijah did not consent to his detention/imprisonment or arrest.
29. The plaintiffs were compelled to return to court to answer to the false charges.
30. All criminal charges were dismissed Laronne on April 22, 2019.
31. All criminal charges were dismissed against Elijah on April 25, 2019.
32. Elijah submitted to a 50 h hearing which was held on April 30, 2019.
33. Laronne twice appeared for a 50 h hearing, the last time being June 14, 2019. The City was not ready to proceed and no hearing was held.
34. It is hereby alleged, pursuant to CPLR 1603, that this action is exempt from the operation of CPLR 1601 from the operation of CPLR 1601, by reason of one or more of the exemptions provided in CPLR 1602.

**AS AND FOR A FIRST AND SECOND CAUSES OF ACTION AGAINST
ALL DEFENDANTS FOR FALSE IMPRISONMENT ON BEHALF OF THE
PLAINTIFFS EACH WITH A CAUSE OF ACTION RESPECTIVELY ALLEGES:**

35. The Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked "1" through "34" with the same force and effect as if more fully and at length set forth herein.

36. That on the 16th day of January, 2019, at or between the approximate hour of 6:15 P.M., the defendants, and their agents, servants and/or employees intentionally held, detained and/or imprisoned each plaintiff without any just cause or grounds therefore.
37. Each of said plaintiffs was held against his will under full force of arms.
38. Each plaintiff named herein was wholly innocent of any crime and did not contribute in any way or manner to his imprisonment by the defendants, their agents, servants and/or employees and was forced to submit to having their freedom restricted and said imprisonment entirely against his/their will.
39. That the defendants, their agents, servants and/or employees, as set forth above, intended to seize, and confine each of the plaintiff's movement and freedom; each of the plaintiffs was conscious of his confinement; each plaintiff did not consent to said confinement/imprisonment; and the confinement was not otherwise privileged.
40. That by reason of the aforesaid false imprisonment each plaintiff was subjected to great indignity, humiliation, pain and great distress of mind and body, and the said plaintiffs have been otherwise damaged.
41. That by reason of the aforesaid, the plaintiff, Laronne, has been damaged in a sum exceeding the jurisdictional limits of the lower courts.
42. That by reason of the aforesaid, the plaintiff, Elijah has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

**AS AND FOR A THIRD AND FOURTH CAUSES OF ACTION AGAINST
ALL DEFENDANTS FOR ARREST ON BEHALF OF THE PLAINTIFFS EACH WITH
A CAUSE OF ACTION RESPECTIVELY ALLEGES:**

43. The Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked "1" through "42" with the same force and effect as if more fully and at length set forth herein.
44. That on the 16th day of January, 2019, at or between the approximate hour of 6:15 P.M., the defendants, and their agents, servants and/or employees intentionally arrested, handcuffed, held, detained and/or imprisoned each plaintiff without any just cause or grounds therefore.
45. Each of said plaintiffs was arrested against his will under full force of arms.
46. Each plaintiff named herein was wholly innocent of any crime and did not contribute in any way or manner to his arrest by the defendants, their agents, servants and/or employees and was forced to submit to having their freedom restricted and said arrest and imprisonment entirely against his/their will.
47. That the defendants, their agents, servants and/or employees, as set forth above, intended to arrest each plaintiff; each plaintiff was conscious of his arrest and confinement; each plaintiff did not consent to said arrest and subsequent confinement/imprisonment; and the arrest was not otherwise privileged.
48. That by reason of the aforesaid false arrest each plaintiff was subjected to great indignity, humiliation, pain and great distress of mind and body, and the said plaintiffs have been otherwise damaged.
49. That by reason of the aforesaid, the plaintiff, Laronne, has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

50. That by reason of the aforesaid, the plaintiff, Elijah has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

**AS AND FOR A FIFTH AND SIXTH CAUSE OF ACTION ON BEHALF OF BOTH
PLAINTIFFS AGAINST ALL NAMED DEFENDANTS FOR ASSAULT AND
BATTERY EACH PLAINTIFF ALLEGES:**

51. The Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked "1" through "50" with the same force and effect as if more fully and at length set forth herein.
52. That commencing on the 16th day of January, 2019, at approximately 6:15 p.m., at "the location", the defendant "officers" and upon information and belief, other officers presently unknown, while acting in the scope of their employment as police officers and as agents for the defendant the "CITY" and "NYPD", without just cause or provocation pointed loaded weapons at the plaintiffs, and physically grabbed each plaintiff and forcibly removed each plaintiff from the bus without having right or authority to do so.
53. Elijah was physically thrown up against the wall, threatened and purposely had his handcuffs applied too tightly in a manner designed to cause the plaintiff pain and discomfort.
54. The defendants refused to loosen or readjust the handcuffs.
55. Each plaintiff was searched.
56. Upon information and belief, the officers had absolutely no reason or just cause to assault and batter the plaintiffs.
57. The assault and battery and physical contact was not privileged.
58. The assault and battery took place while the plaintiffs had committed no crime.

59. That the defendants, their agents, servants and/or employees, including unknown police officers, and the arresting officers, acting as agents on behalf of the defendant "CITY" and/or "NYPD", within the scope of their employment, intentionally, willfully, and/or maliciously assaulted and battered each of the named plaintiffs, in that they had the real or apparent ability to cause imminent harmful or offensive bodily contact and intentionally did an act which threatened to and did cause such contact to "the plaintiffs".
60. That said acts caused apprehension of such offensive contact to each of "the plaintiffs", and the defendants caused such batter in and about his body and limbs.
61. That by reason of the aforesaid intentional assault and battery, each plaintiff suffered offensive contact and/or physical and/or psychological injuries to his body mind, and that each was otherwise damaged.
62. That by reason of the aforesaid, the plaintiff, Laronne, has been damaged in a sum exceeding the jurisdictional limits of the lower courts.
63. That by reason of the aforesaid, the plaintiff, Elijah, has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

**AS FOR A SEVENTH AND EIGHTH CAUSE OF ACTION AGAINST
BELLEVUE AND ALL NAMED DEFENDANT OFFICERS FOR 42 U.S.C. 1983
VIOLATIONS EACH OF THE PLAINTIFFS ALLEGE:**

64. "The plaintiffs" repeat, reiterate and reallege each and every allegation contained in paragraphs marked "1" through "63" with the same force and effect as if more fully and at length set forth herein.
65. By reason of the aforesaid acts, the defendant "officers" individually and collectively have violated each plaintiff's right: to freedom of speech/privacy under the First and

- Fourteenth Amendments, to be free of illegal searches and seizures under the 4th and 14th Amendments to the United States Constitution; to be free from use of excessive use of force thereby giving rise to a cause of action pursuant to 42 USC 1983.
66. The conduct and actions of the named defendant police officers, acting under color of law, in seizing each plaintiff, and upon information and belief, in searching each plaintiff; in assaulting each plaintiff, in threatening the plaintiffs, and in falsely imprisoning, illegally searching and threatening the plaintiffs with loaded weapons, was done intentionally, maliciously and/or with a reckless disregard for the natural and probable consequences of their acts, was done without lawful justification, and was designed to and did cause specific and serious bodily, mental and emotional harm, pain and suffering in violation of each of the Plaintiff's Constitutional rights as guaranteed under 42 U.S.C. 1983, et seq.,
67. Each of the defendant police officers actions, individually and collectively deprived each of the Plaintiffs of his rights including, but not limited to the right to privacy/freedom of speech under the First and Fourteenth Amendments to the United States Constitution and the Fourth and Fourteenth Amendments guaranteeing protection against unlawful seizure of their persons, and Title 42 U.S.C. 1983 et seq.
68. That by reason of the aforesaid, Laronne has been damaged in a sum exceeding the jurisdictional limits of the lower court and seeks compensatory and punitive damages, costs, attorneys fees, and expert fees as provided by 42 U.S.C. Sections 1983 and 1988, and such other belief as to the court may seem just and proper.
69. That by reason of the aforesaid, Elijah has been damaged in a sum exceeding the jurisdictional limits of the lower court and seeks compensatory and punitive damages,

costs, attorneys fees, and expert fees as provided by 42 U.S.C. Sections 1983 and 1988, and such other relief as to the court may seem just and proper.

AS AND FOR A NINTH AND TENTH
CAUSE OF ACTION FOR NEGLIGENCE AGAINST THE "CITY"
EACH OF THE PLAINTIFFS ALLEGE

70. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked "1" through "69" with the same force and effect as if more fully and at length set forth herein.
71. That the CITY and/or NYPD were at all relevant times hereunder, negligent in the testing, analyzing, screening, hiring, investigating, training, retaining, promotion, supervision, monitoring, disciplining and/or assigning of its officers, including the defendants named herein
72. That as a result of their negligence, the above named plaintiffs were falsely imprisoned, illegally seized, illegally searched, falsely arrested, assaulted, battered and had their constitutional and civil rights violated.
73. That by reason of the aforesaid, the plaintiff, Laronne has been damaged in a sum exceeding the jurisdictional limits of the lower courts.
74. That by reason of the aforesaid, the plaintiff, Elijah, has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

WHEREFORE, the plaintiffs demand judgment against the defendants in a sum to be determined by the trial of fact, plus costs, attorney's fees, disbursements, legal and statutory interest and such other relief as to the court seems just and proper on the first through the tenth causes of action, plus attorneys fees, costs, disbursements and punitive damages (on the seventh

and eighth causes of action), and such further relief as to the court seems just and proper.

DATED: New York, New York
June 21, 2019

A handwritten signature in dark ink, appearing to read 'JEFFREY L. EMDIN', is written over a horizontal line.

Jeffrey L. Emdin, Esq.
Emdin & Russell, LLP.
Attorneys for Plaintiffs
499 7th Avenue, Suite 12N
New York, New York 10017
(212) 683-3995

ATTORNEY'S VERIFICATION

The undersigned, an attorney admitted to practice in the Courts of the State of New York certifies as follows:

That I am an attorney associated with the law firm of Emdin & Russell, Esq., the attorneys of record for the Plaintiffs in the within action; that I have read the foregoing Summons and Complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and that as to those matters, I believe them to be true.

The undersigned further states that the reason this Summons and Complaint is made by me and not by the Plaintiffs is that the Plaintiffs do not reside within the county in which my office is located.

The grounds of my belief as to all matters stated upon my knowledge are my interviews with the Plaintiffs and a reading of the documents in my case file.

The undersigned affirms that the foregoing statements are true, under the penalty of perjury.

Dated: New York, New York
June 21, 2019



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Jeffrey L. Emdin, Esq.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

LARONNE CHANCE, A MINOR, BY HIS MOTHER AND NATURAL GUARDIAN, JEANNETTE CHANCE, ELIJAH TAYLOR-KINSALE, A MINOR, BY HIS MOTHER AND NATURAL GUARDIAN, RACHEL KINSALE,

Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER BELLEVUE, TAX ID # 94550573, 81ST. PCT., AND POLICE OFFICERS JOHN DOE #1-#6, IDENTITIES PRESENTLY UNKNOWN,

Defendants.

SUMMONS WITH VERIFIED COMPLAINT

LAW OFFICES OF EMDIN & RUSSELL, LLP
Attorneys for Plaintiff
499 Seventh Avenue, Floor 12N
New York, NY 10018
(212) 683-3995

To: City of New York
c/o Office of the Corporation Counsel
100 Church Street
New York, NY 10007

Police Officer Bellevue
Tax ID 945505
c/o 81st pct.
30 Ralph Avenue
Brooklyn, NY 11221

The New York City Police Department
1 Police Plaza
New York, New York 10038

Pursuant to 22 NYCRR 130-1.0, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: June 21, 2019

Signature

Jeffrey L. Emdin, Esq.

PLEASE TAKE NOTICE

- ☐ NOTICE OF ENTRY
that the within is a (certified) true copy of a _____ duly entered in the office of the clerk of the within named court on _____
- ☐ NOTICE OF SETTLEMENT
that a _____ of which the within is a true copy
will be presented for settlement to the HON. one of the judges of the, on _____